10551 South Ridgeview Road
Olathe, KS 66061
Bus (866) 857-5052

December 12, 2024

Katherine Toomajian
Insurance Enforcement Analyst II
Consumer Services Center
Minnesota Department of Commerce
85 7th Place East, Suite 280
Saint Paul, MN 55101

DOI file number:	93547
Complainant:	Yibiao Lu
Our Insured:	Yibiao Lu
Policy Number:	0980554965
Claim Number:	7007986837-1
Date of Loss:	July 13, 2024
Policy Type:	Homeowners
NAIC Code:	21660

Dear Katherine Toomajian,

Thank you for your correspondence dated December 4, 2024, regarding the above referenced claim. In this inquiry, Mr. Lu expressed dissatisfaction with the denial of coverage for his claim. We appreciate the opportunity to review this matter and respond.

We respectfully maintain that the coverage determination for Mr. Lu's claim is appropriate and supported. On August 13, 2024, a claim was filed for damages due to hail for Mr. Lu's property. Upon review the photos obtained during an inspection conducted by Hancock Claims Consultants on August 29, 2024, it was determined that there was no exterior damage created by wind or hail to the windows for Mr. Lu's home. There was no opening created by the direct for of wind or hail allowing water to enter into the home and cause damages. As Mr. Lu had sent his own photos and was in disagreement with the decision of no coverage for the damages to the windows, the services of an engineer were enlisted to inspect the residence. The engineer inspection occurred on October 9, 2024, and the report of the findings was received and reviewed on November 4, 2024. The report confirmed that the damages to Mr. Lu's windows were unrelated to wind or hail or other storm related causes. The stains were noted to be caused by condensation or leakage through the windows which was related to long term aging and deterioration to the units. Therefore, as wear and tear are not a covered cause of loss under the policy, we are unable to afford coverage for the damages to Mr. Lu's windows.

We value Mr. Lu as a customer and appreciate his business. Regrettably, we do not have a more favorable response. Should Mr. Lu have additional questions, we encourage him to

contact Field Claim Supervisor Bradlee Munson at (913) 274-0816 or Field Claims Manager Shawn McCullough at (210) 249-6485. If you have questions regarding this letter or require additional information, I can be reached at (405) 782-2827 or by email at amy.spawrbardley@farmersinsurance.com.

Information in this letter and the documents enclosed which may constitute confidential personally identifiable, financial or trade secret information is exempt from disclosure under applicable Public Records Acts or Open Records Laws. Non-public personal information, as defined in the Gramm-Leach-Bliley Act, cannot be distributed to third parties, other than the Department and the individual(s) to whom it pertains. Information marked “confidential” and/or “trade secret” is likewise exempt from disclosure under applicable Public Records Acts or Open Records Laws, and release of this information would cause us irreparable harm and would permit our competitors to obtain an unfair competitive advantage. Accordingly, we request that your agency promptly notify us about any Public Records or Open Records request that is made which would lead to the disclosure of our confidential information, as required by law.

Sincerely,

Fire Insurance Exchange

Amy Spawr-Bardley

Amy Spawr-Bardley
Customer Relations Senior Consultant
Claims Customer Relations

Enclosures: Timeline
Policy copy
Letters
Photos
Engineer Report